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|   |                                                                          | <p>and (2) the credibility of the supporting evidence.” (<i>Guillory v. Hill</i> (2019) 36 Cal.App.5th 802, 811.) The court may make a downward adjustment if the billing entries are vague, “blockbilled,” or unnecessary. (<i>569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.</i> (2016) 6 Cal.App.5th 426, 441.)</p> <p>It is within the court’s discretion to decide which of the hours expended by the attorneys were “reasonably spent” on the litigation. (<i>Meister v. Regents of Univ. of California</i> (1998) 67 Cal.App.4th 437, 449.) A trial court has broad discretion to determine the amount of reasonable attorney’s fees, as an experienced trial judge is in the best position to decide the value of professional services rendered in court. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095.)</p> <p>Based on the supporting papers submitted by Plaintiffs, the Court finds Plaintiffs reasonably incurred \$22,261 in attorneys’ fees. The Court finds the billable rates to be reasonable and within the prevailing rate in the community for similar work. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095.) However, Plaintiffs cannot recover for “noncompensable” tasks that involved purely clerical or secretarial tasks. (See <i>Collins v. City of Los Angeles</i> (2012) 205 Cal.App.4th 140, 159.) Accordingly, the Court reduced the fees requested by \$1,742.</p> <p>The Court declines to tax the costs. Defendant did not file a timely motion to strike or tax costs. (Cal. R. Ct. Rule 3.1700(b)(1).) Moreover, the cost items at issue (e.g., jury deposit, service of process and e-filing fees) are recoverable as reasonable costs and expenses. (See Code Civ. Proc., § 1033.5, subd. (a)(1), (a)(4), (a)(14).)</p> <p>Plaintiff shall give notice of the ruling.</p> |
| 6 | <p>Peralez vs. Skytower Aviation Services, Inc.</p> <p>2024-01373030</p> | <p>Motion for Discovery / Motion to Compel Answers to Form Interrogatories / Motion to Compel Production /Motion to Deem Facts Admitted</p> <p><b>Defendant Bradley Young’s (“Defendant”) motions to compel Plaintiff Mayra Peralez’s (“Plaintiff”) responses to form interrogatories, set one, special interrogatories, set one, and requests for production of documents, set one, are granted.</b></p> <p><b>Defendant’s motion to deem requests for admission, admitted, shall be granted unless Plaintiff serves Code-compliant responses prior to the hearing.</b></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |

A propounding party may move for an order compelling responses to interrogatories at any time “[i]f a party to whom interrogatories are directed fails to serve a timely response.” (Code Civ. Proc., § 2030.290, subd. (b).) By failing to serve timely responses, Plaintiff waived “any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product.” (Code Civ. Proc., § 2030.290, subd. (a).)

A propounding party may move for an order compelling responses to a demand for inspection at any time “[i]f a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response.” (Code Civ. Proc., § 2031.300, subd. (b).) By failing to serve timely responses, Plaintiff waived “any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010).” (Code Civ. Proc., § 2031.300, subd. (a).)

Lastly, a propounding party may move for an order to deem the truth of any matters specified in the requests be deemed admitted “[i]f a party to whom requests for admission are directed fails to serve a timely response.” (Code Civ. Proc., § 2033.280, subd. (b).) By failing to serve timely responses, the party to whom requests are directed “waive[s] any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010).” (Code Civ. Proc., § 2033.280, subd. (a).)

Here, Defendant proffers evidence showing he served the written discovery on Plaintiff; and, that Plaintiff failed to serve timely responses. Plaintiff has not opposed the motions or shown that responses have since been served. Accordingly, the Court orders Plaintiff to serve verified responses, without objections, to Defendant’s first sets of form interrogatories, special interrogatories, and requests for production of documents, within 14 days of the notice of ruling.

Unless substantially Code-complaint responses are served before the hearing, the Court intends to grant the motion to deem requests for admission admitted, and to deem the matters in Defendant’s first set of requests for admission, against Plaintiff, admitted.

In connection with these motions, Defendant Young is awarded reasonable sanctions in the amount of \$635 per motion, for a grand total of \$2,549 in monetary sanctions, against Plaintiff Peralez. (Code Civ. Proc., §§ 2023.010, 2023.030, 2033.280, subd. (c).) The

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|   |                                                                                                                     | <p>sanctions are payable to Defendant's counsel, Stone &amp; Sallus, LLP, within 30 days.</p> <p>Defendant shall give notice of the ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 7 | <p>Popal vs. Sajjadian</p> <p>2024-01384261</p>                                                                     | <p>Motion for Summary Judgment and/or Adjudication</p> <p>The court will hear argument from the parties.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 8 | <p>Rivera vs. Marinescu</p> <p>2025-01462125</p>                                                                    | <p>Motion to Appear Pro Hac Vice</p> <p>The application of Ben Martin for admission <i>pro hac vice</i> as counsel for Plaintiff Roseanne Rivera is granted.</p> <p>Plaintiff shall give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 9 | <p>Thomas Vogelee &amp; Associates, APC vs. Kern River Corridor Endowment and Holding Co.,</p> <p>2025-01491400</p> | <p>Motion for Summary Judgment and/or Adjudication</p> <p>On defendant Kern River Corridor Endowment and Holding Co., Inc.'s motion for summary judgment on the complaint of plaintiff Thomas Vogelee &amp; Associates, APC, the court is inclined to continue the hearing pursuant to Code of Civil Procedure section 437c(h) for Plaintiff to conduct and complete discovery as described in the Lewis Declaration .</p> <p>The court will hear from counsel on this, and on whether the trial should be continued as well.</p> <p>Code of Civil Procedure section 437c(h) states that "[i]f it appears from the affidavits submitted in opposition to a motion for summary judgment . . . that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just."</p> <p>The decision to grant or deny a continuance request under section 437c(h), is vested in the trial court's discretion. <i>Braganza v. Albertson's LLC</i> (2021) 67 Cal.App.5th 144, 152 (citation omitted). Continuance requests under section 437c(h), are to be liberally</p> |